

BC409459 BC409459

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-21

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Case Number: BC409459 Hearing Date: August 21, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

309

TENATIVE RULING

KENNY BEHNAM KOHANTEB

vs.

ALL CENTURY, INC., et al.

Case

No.: BC409459

Hearing Date: August 21, 2026

Plaintiff's

motion for OSC re: Contempt is GRANTED.

On 2/19/2010,

judgment was entered in favor of Plaintiff against Defendant Joseph Boodaie
(Boodaie) in the amount of \$964,709.14.

On

2/3/2020, the judgment was renewed.

On

10/30/2025, the Court granted Boodaie's motion to vacate the Court's contempt orders of 11/7/2024 and 2/27/2025.

On

11/7/2025, Plaintiff moved for reconsideration.

On

11/14/2025, Plaintiff moved for an OSC re: contempt against Boodaie.

On

12/3/2025, the Court denied the motion for reconsideration.

Discussion

Plaintiff

seeks a finding of contempt for Boodaie's failure to obey the Court's August 13, 2024, November 7, 2024, February 27, 2025, September 10, 2025 and October 30, 2025 orders for failing to provide code-compliant supplemental requests for production of documents (see, Minute Orders dated 11/7/2024, 1/6/2025, 2/7/2025).

In

support, Plaintiff notes that the Court has already found Boodaie to be in contempt on numerous occasions, but set aside those rulings due a failure of proper service. As such, Plaintiff's motion is an effort to achieve the same result previously granted but in a procedurally sufficient manner.

A contempt

proceeding is commenced by the filing of an affidavit and a request for an order to show cause. (Cedars-Sinai Imaging Med. Grp. v. Superior Court (2000) 83 Cal. App. 4th at p. 1286.) After notice to the opposing party's lawyer, the court, if satisfied with the sufficiency of the affidavit, must sign an order to show cause regarding contempt in which the date and time for a hearing are set forth. The order to show cause acts as a summons to appear in court and to show cause why a certain thing should not be done. (C.C.P. § 1212; Arthur v. Superior Court (1965) 62 Cal. 2d 404, 407-408; Morelli v. Superior Court (1968) 262 Cal. App. 2d 262, 269)

Here, Plaintiff

submitted an affidavit framing the issues for the Court, and requests an order to show cause. As such, Plaintiff's motion is procedurally sufficient. While Boodaie argues that "the trial court has no jurisdiction to proceed...[because] it did not issue or sign an order to show cause re contempt," that is precisely what this motion seeks to obtain. (Opp., 8: 23-24.) And because the Court has not yet issued an order to appear to show cause, Plaintiff could not have personally served such a request. Rather, such an order, granted by this motion, would then need to be personally served on Boodaie.

After review,

the Court found Plaintiff's motion and affidavit sufficiently alleged contempt by Boodaie, for reasons already thoroughly set forth by this Court in previous hearings and contempt rulings on 11/7/2024 and 2/27/2025, and as reflected in the supplemental brief filed by Plaintiff on 1/9/2026.

Now, having

continued the contempt motion to allow for proper service, Plaintiff indicates in supplemental filing filed 8/17/2026 that Boodaie remains in contempt. The Court takes Boodaie's non-opposition to be a concession to the motion on the merits.

Based on the

foregoing, Plaintiff's motion for a finding of contempt is granted. Plaintiff is found to be in contempt as a result of his willful and deliberate disobedience of the Court's November 7, 2024, February 27, 2025, September 10, 2025 and October 30, 2025 order.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.